Topic 4 — Union & Territory

Covers syllabus (click to expand)

Union and its Territory | Formation of States | State Reorganisation | States Reorganisation Act, 1956 | States Reorganisation Commission (Fazl Ali) | Union Territories | Administration of Union Territories | Lieutenant Governor | Article 239AA (Delhi Special Provisions) | Special Provisions for Puducherry | Acquisition of Territory | Cession of Territory | Article 1–4 | National Integration Council | Citizenship | Single Citizenship | Citizenship Act, 1955 | Modes of Acquisition of Citizenship | Modes of Loss of Citizenship | OCI / NRI / PIO (basic) | Citizenship Amendment Act (basic)

Sources baked in: Laxmikanth (Union & Territory / Citizenship), Constitution Arts. 1–4 & 5–11, UPPCS Prelims PYQs 2018–2025 **Weight:** ★★★ — Art. 2 vs 3; SRC members; 28 States + 8 UTs; 69th Delhi; citizenship Arts. 5–11; UT seats in LS **Last verified:** August 2026 **Current Affairs:** J&K still a UT (statehood pending); Delhi services (GNCTD 2023 framework in 1991 Act); CAA 2019 upheld 2024

Union and its Territory (Part I)

- **Part I = Arts. 1–4.** Names and extent sit in the **First Schedule**.
- Ambedkar (अम्बेडकर): "Union of States" (not "federation") so no State has a right to **secede**. Union is **indestructible**; States are **destructible** (Parliament may reorganise).
- Territory of India (Art. 1(3)) = (i) **States** (ii) **Union Territories** (iii) such other territories as may be **acquired**.
- Original 1950 map used **Part A / B / C / D** States (Governors / Rajpramukhs / Chief Commissioners / Andaman (अंडमान)). **7th Amendment, 1956** abolished A–B–C–D and introduced the present **States + UTs** scheme.

Art.	Subject	Elaboration
1	Name and territory	India, that is Bharat, shall be a **Union of States**. First Schedule = names & territorial extent of States/UTs.
2	Admission / establishment of new States	Parliament may by law **admit** into the Union, or **establish**, new States on such terms as it thinks fit. Used for territory that was **not already a State of the Union** (classic path: **Sikkim**).
3	Formation / alteration of States	Five powers: (a) form a new State (b) increase area (c) diminish area (d) alter boundaries (e) **alter name**. Can also form a **UT** from a State / merge UTs (as done for J&K 2019 / DNH–DD 2020).
4	Laws under 2 and 3	May amend **First & Fourth** Schedules (and supplemental/incidental provisions). Such a law is **not** an amendment under **Art. 368** — **simple majority** of Parliament is enough.

Formation of States — Art. 3 procedure (steps)

1. Bill introduced in **either House** of Parliament — **only on the President's recommendation**.
2. Before recommending, President **refers** the Bill to the Legislature of the State(s) concerned for its **views**, and may fix a time-limit.
3. State Legislature's view is **not binding** (Parliament may pass the Bill even if the State disagrees or does not reply in time).
4. Passed by **simple majority** of each House (present and voting (गणपूर्ति)) — **not** special majority, **not** State ratification.
5. **No need** for a constitutional amendment under Art. 368 (**Art. 4**).

> **Traps:** State Legislature **cannot** itself change the State's name. Referral is for **views**, not **consent**. Art. 3 does **not** cover **admission** of a brand-new State (**Art. 2**).

PYQ — UPPCS Prelims 2020, Q96

Which of the following is NOT possible by a law of Parliament under Article 3 of the Constitution?

A. Formation of new States B. Alteration of areas of States C. Alteration of boundaries of States D. Admission of new States

Show answer

Ans: D. Admission of new States = **Article 2**, not Article 3.

PYQ — UPPCS Prelims 2024, Q101

Which one of the following pairs is not correctly matched?

A. Equality before Law — Guaranteed to both citizens and non-citizens B. Equality of opportunity in public employment — Guaranteed only to Indian citizens C. Creating a new State — Power of Parliament D. Altering the name of a State — Power of a State Legislature

Show answer

Ans: D. Altering the name = **Parliament under Art. 3**, not the State Legislature (State only gives non-binding views).

Acquisition vs Cession of Territory

	Acquisition (add)	Cession (give away)
Meaning	Foreign / other territory becomes part of India (Art. 1(3)(c))	Indian territory transferred to a foreign State
Method	Parliament may provide by **ordinary law**; citizens of the area notified under Citizenship Act	**Constitutional amendment** — SC advisory *Berubari Union* (**1960**): Preamble (प्रस्तावना) + Art. 1 / First Schedule cannot be used to cede land by ordinary law

	Acquisition (add)	Cession (give away)
Not the same as	—	Mere **boundary identification** / survey of an already agreed line may not need amendment

Acquisition — how territory actually came in - **Chandernagore** (चंद्रनगर) (French) — 1954; 10th Amendment, 1961 (merged into West Bengal). - **Portuguese:** Dadra & Nagar Haveli (1954/UT 1961); **Goa, Daman & Diu** — Operation Vijay **19 Dec 1961** → 12th Amendment, 1962 (UT); Goa became a State **1987**. - **Trap:** Dadra & Nagar Haveli were under **Portuguese** rule till **1954** — **not French** (IAS 2000 incorrect-statement stem). - **French establishments (Puducherry etc.)** — de facto **1954**, de jure **1962** (14th Amendment; Treaty of Cession). - **Sikkim** — Indian protectorate → **35th Amendment, 1974** (associate State, Art. 2A) → referendum → **36th Amendment, 1975** (full **22nd State**; Art. 2A omitted; **371F**). - **Bangladesh LBA** — India **received** enclaves as well as transferred some (**100th Amendment, 2015**).

Cession — amendments - **9th Amendment, 1960** — Berubari Union and related territories to **Pakistan** (Nehru (नेहरू)–Noon, 1958). - **100th Amendment, 2015** — India–Bangladesh Land Boundary Agreement (1974/2011): exchange of **162 enclaves** (India transferred 111; received 51). Affected West Bengal, Assam, Meghalaya, Tripura.

State Reorganisation — Commissions & First Linguistic State

Dhar Commission (1948)

- Official name: **Linguistic Provinces Commission**; chair **S.K. Dhar** (retired judge).
- Appointed June **1948** by the Constituent Assembly (संविधान सभा) / Union; reported **Dec 1948**.
- Rejected language as the main basis; preferred **administrative convenience**, history (इतिहास), geography.

JVP Committee (Dec 1948)

- **J**awaharlal Nehru, **V**allabhbhai Patel, **P**attabhi **Sitaramayya** (Congress (कांग्रेस)).
- Appointed after Dhar; reported **April 1949**.
- Also **rejected** immediate linguistic reorganisation (unity of the new Republic first).
- **Trap:** Sitaramayya = **JVP**, **not** SRC. K.T. Shah = CA member, **not** SRC.

Andhra — first linguistic State

- Fast unto death of **Potti Sriramulu** (died **15 Dec 1952**) for a Telugu State.
- **Andhra State: 1 October 1953** — Telugu districts of Madras Presidency (प्रेसीडेंसी). First capital **Kurnool** (not Hyderabad).
- This broke the Dhar/JVP “no language” line and forced a Union-wide commission.

States Reorganisation Commission (SRC), 1953

- Appointed **29 Dec 1953** (Nehru government). Report submitted **30 Sep 1955**; published 1955.
- **Chairman: Justice Fazl Ali.** Members: **K.M. Panikkar** and **H.N. Kunzru** (3 members only).

- Broadly accepted language **but rejected** “one language = one State” as the **sole** test.

Four (चातुर्याम) factors (learn the list): 1. Preservation and strengthening of the **unity and security** of India 2. **Linguistic and cultural** homogeneity 3. **Financial, economic and administrative** considerations 4. Planning and **welfare** of the people of each State and of the nation

- SRC recommended **16 States and 3 UTs**. The Union implemented **14 States and 6 UTs** (1956).
- Did **not** then split bilingual **Bombay** or **Punjab** on SRC’s final political compromise — those splits came **1960** and **1966**.

PYQ — UPPCS Prelims 2025, Q71

Which of the following persons were members of the States Reorganisation Commission?

1. K. T. Shah
2. K. M. Panikkar
3. P. Sitaramayya
4. H. N. Kunzru

A. 1 and 3 B. 2 and 4 C. 2 and 3 D. 1 and 2

Show answer

Ans: B — 2 and 4. SRC = Fazl Ali (chair) + Panikkar + Kunzru.

States Reorganisation Act, 1956

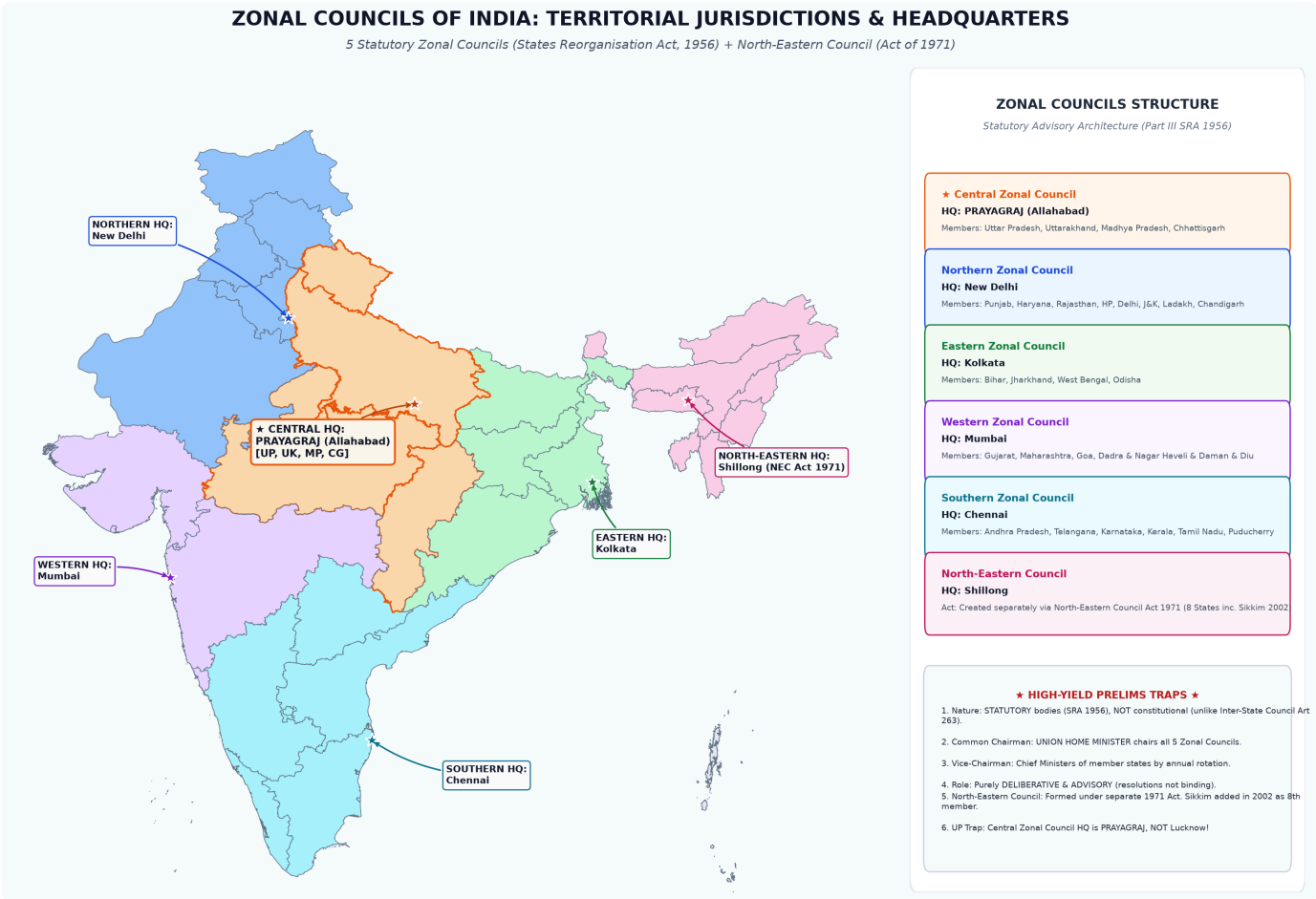
- Main statute implementing SRC (with modifications). In force **1 November 1956**.
- Paired with the **7th Constitutional Amendment, 1956**:
- Abolished **Part A / B / C / D** classification and Rajpramukhs.
- Introduced the category **Union Territory**.
- Enabled a **common High Court** for two or more States; High Courts for UTs (**Art. 241**).
- Result on 1 Nov 1956: **14 States + 6 UTs**.

14 States (1956): Andhra Pradesh, Assam, Bihar, **Bombay**, J&K, **Kerala** (new — Travancore-Cochin + Malabar), Madhya Pradesh, Madras, Mysore (मैसूर), Orissa, Punjab, Rajasthan, Uttar Pradesh, West Bengal.

6 UTs (1956): Andaman & Nicobar (निकोबार); Delhi; **Himachal Pradesh**; Laccadive, Minicoy & Amindivi (later **Lakshadweep** (लक्षद्वीप)); **Manipur**; **Tripura**.

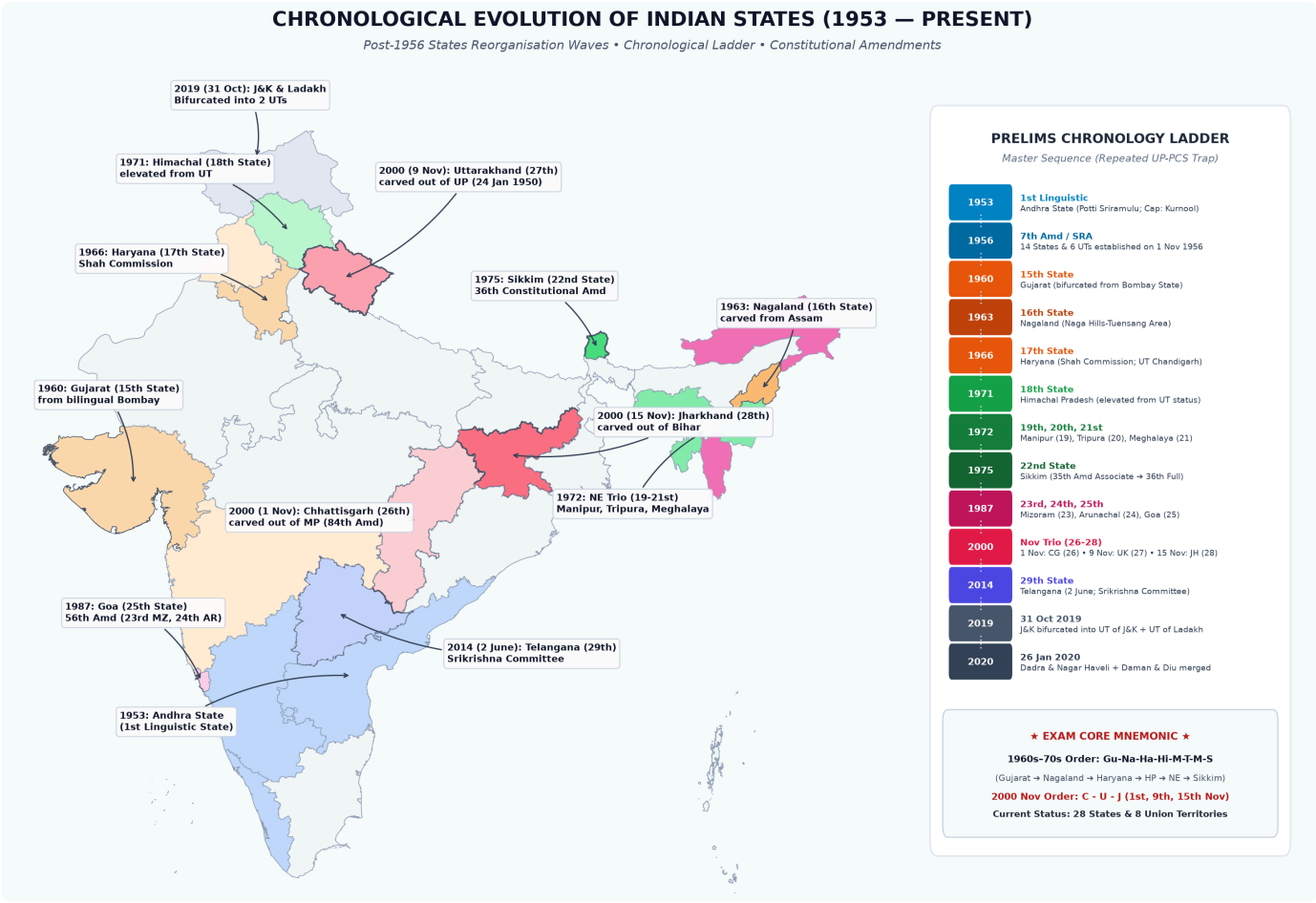
Renames later (not 1956): Madras → **Tamil Nadu (नाडु) (1969)** · Mysore → **Karnataka (1973)** · Uttaranchal → **Uttarakhand (2007)** · Orissa → **Odisha (2011)** · Pondicherry (पांडिचेरी) → **Puducherry (2006)**.

Spatial Reference: Statutory Zonal Councils & Regional Headquarters



- **Statutory Status**: Zonal Councils are statutory bodies established under **Part III of the States Reorganisation Act, 1956** (NOT constitutional; contrast with Art. 263 Inter-State Council).
- **5 Statutory Zones**: Northern (New Delhi), Central (Prayagraj / Allahabad), Eastern (Kolkata), Western (Mumbai), Southern (Chennai).
- **North-Eastern Council**: Created separately under the **North-Eastern Council Act, 1971** (Headquarters: Shillong).
- **Chairman**: Union Home Minister is the common Chairman of all 5 Zonal Councils; Chief Ministers act as Vice-Chairmen by annual rotation.
- **UP Focus**: Uttar Pradesh falls under the **Central Zonal Council**, headquartered at **Prayagraj (Allahabad)** alongside MP, Uttarakhand, and Chhattisgarh.

Visual Reference: Chronological Evolution of Indian States (1953 — Present)



After 1956 — State / UT chronology (spine)

Year	What happened
1960	Bombay split → **Maharashtra + Gujarat**
1961	Goa, Daman & Diu liberated (**19 Dec**, Operation Vijay); 12th Amd 1962 (UT); DNH already UT
1963	**Nagaland** 16th State
1966	Punjab Reorganisation → **Punjab + Haryana**; **Chandigarh** UT; HP enlarged
1971	**Himachal Pradesh** State
1972	**Manipur, Tripura, Meghalaya** States; Mizoram & Arunachal become UTs
1975	**Sikkim** 22nd State (**36th Amendment**; 35th had made it associate State, 1974)
1987	**Goa, Mizoram, Arunachal Pradesh** States (Goa 30 May; Daman & Diu remained UT)
2000	**Chhattisgarh** 1 Nov · **Uttarakhand** (then Uttaranchal) **9 Nov** · **Jharkhand** 15 Nov
2014	**Telangana** 2 June (AP Reorganisation Act, 2014)
2019	J&K Reorganisation Act — **J&K UT** (with legislature) + **Ladakh UT** (no legislature) from **31 Oct 2019**
2020	**Dadra & Nagar Haveli and Daman & Diu** merged into **one UT** (26 Jan 2020)

Present fact:28 States + 8 Union Territories.8 UTs: Andaman & Nicobar; Chandigarh; Dadra & Nagar Haveli and Daman & Diu; **Delhi (NCT)**; **Jammu & Kashmir**; **Ladakh** (लद्दाख); Lakshadweep; **Puducherry**.

> **UP focus:** Uttarakhand carved out of **Uttar Pradesh** on **9 November 2000** (renamed from Uttaranchal in 2007).

Union Territories — Administration

- **Part VIII** (Arts. **239–241**). UTs are **not** States: they are administered by the **President** (Centre), not by a Governor under Part VI.
- **Art. 239:** President administers a UT through an **Administrator** appointed by him. The Administrator **may be designated Lieutenant Governor**.
- **Art. 239A** (14th Amendment, **1962**): Parliament may create a **Legislature and/or Council of Ministers** for certain UTs — today the living case is **Puducherry** (originally also drafted for HP, Manipur, Tripura, Goa, Daman & Diu).
- **Art. 239AA / 239AB:** special code for **Delhi** (69th Amendment).
- **Art. 240:** President may make **regulations** for the peace, progress and good government of specified UTs **without** a legislature (and, in some cases, when the legislature is dissolved/suspended). Same force as an Act of Parliament. Living list: **Andaman & Nicobar**; **Lakshadweep**; **Dadra & Nagar Haveli and Daman & Diu**; **Puducherry** (when the Assembly is dissolved/suspended). **Goa is a State** — it is **not** on the Art. 240 UT list.
- **Art. 241:High Court** for a UT; Parliament may include a UT in a neighbouring State's HC (e.g. Chandigarh → Punjab & Haryana HC).

UT type	UTs	Political executive
No legislature	Andaman & Nicobar; Chandigarh; DNH & DD; Lakshadweep; **Ladakh**	President → Administrator / LG only
Legislature + CoM	**Delhi (239AA)**; **Puducherry (239A)**; **J&K** (J&K Reorganisation Act, **2019**)	Elected Assembly + CM; LG remains the Centre's appointee

Parliament & UTs - LS seats from UTs: **not more than 20** (**Art. 81**). - RS: UTs as Parliament provides (**Art. 80**) — Delhi and Puducherry have RS seats; most other UTs do not. - Parliament can legislate on **any** subject for a UT (including State List (राज्य सूची)) — **Art. 246(4)** idea.

Lieutenant Governor (vs Administrator / Governor)

Point	Lieutenant Governor / Administrator (UT)	Governor (State)
Source	**Art. 239** (President's appointee; may be titled LG)	**Art. 155**

Point	Lieutenant Governor / Administrator (UT)	Governor (State)
Tenure	Pleasure of the **President**	Pleasure of the President; normally 5 years
Aid & advice	Only where a CoM exists (Delhi / Puducherry / J&K) — and even then **discretion / reference to President** is wider	Art. 163 — aid & advice except constitutional discretion
Delhi special	Public order, police, land with Centre; difference of opinion → **President**	No such Union-reserve triplet
Same person	One person may administer **two UTs** (or a Governor may be Administrator of a UT — **Chandigarh** often the Punjab Governor)	One person may be Governor of two or more States (Art. 153)

Who is called what (present practice)LG: Delhi, Puducherry, Andaman & Nicobar, J&K, Ladakh. **Administrator:** Chandigarh, Lakshadweep, Dadra & Nagar Haveli and Daman & Diu.

> **Logic:** "LG" is a **designation** of the Administrator under Art. 239 — not a separate constitutional office like the Governor of a State.

PYQ — UPPCS Prelims 2018, Q150

What can be the maximum representation from the Union Territories to the Lok Sabha (लोकसभा)?

A. 15 B. 20 C. 25 D. None of the above

Show answer

Ans: B — 20.

PYQ — UPPCS Prelims 2023, Q1

Which among the following (Provision — Part of the Constitution) is not correctly matched?

A. The Union Territories — Part VIII B. The Scheduled and Tribal (आदिवासी) Areas — Part X C. Tribunals — Part XI D. Official Language — Part XVII

Show answer

Ans: C. Tribunals = **Part XIVA** (भाग XIVA). UTs = Part VIII is correctly matched.

Article 239AA — Delhi (NCT)

- Delhi was a **Part C State** → **UT (1956)** → **NCT** by **69th Constitutional Amendment, 1991** (Arts. **239AA, 239AB**). Working statute: **GNCTD Act, 1991**.
- **Trap:** 69th created **National Capital Territory**. **NCR** (National Capital **Region**) is a **planning** region under the **NCRPB Act, 1985** (Delhi + districts of Haryana, UP, Rajasthan). Papers sometimes say "Region" but the amendment answer is **69th**.

- **70th Amendment, 1992:** elected MLAs of NCT Delhi (and Puducherry) vote in the **Presidential election**.

What 239AA actually provides - There **shall** be a Legislative Assembly and a Council of Ministers with a **Chief Minister**. - Assembly strength (GNCTD Act): **70** members; CoM **not more than 10%** of the Assembly → **7** ministers including CM. - CoM collectively responsible to the **Assembly**. - Assembly may legislate on **State List and Concurrent ListexceptEntries 1, 2 and 18 of the State List** and related Concurrent entries: **public order, police, land**. - If there is a **difference of opinion** between LG and CoM, LG **refers it to the President**; pending decision LG may, in urgency, take immediate action. - **Art. 239AB:** President may suspend the 239AA machinery (failure of constitutional machinery — Delhi's cousin of **356**).

Case / statute facts - **SC 2018** (*Govt of NCT of Delhi v. UoI*): LG is bound by aid and advice of CoM except where the Constitution gives independent discretion; LG is **not** a Governor of a full State. - **GNCTD (Amendment) Act, 2021:** certain executive decisions to be placed before the LG before action. - **SC 11 May 2023:** elected Delhi government controls **services**, except public order, police, land. - **GNCTD (Amendment) Act, 2023** (after 19 May 2023 Ordinance): **National Capital Civil Services Authority** (CM + Chief Secretary + Principal Home Secretary); **LG has the final say** on transfers/postings of specified officers. The 2023 Amendment Act was later repealed as a **spent/incorporated** law by the **Repealing and Amending Act, 2025** — the **text survives inside the 1991 principal Act**.

PYQ — UPPCS Prelims 2022, Q131

By which amendment of the Constitution has 'Delhi' been made the National Capital Region?

A. 75th B. 73rd C. 70th D. 69th

Show answer

Ans: D — 69th (1991). Strict wording = **National Capital Territory**; 70th = Presidential electoral college.

Special Provisions — Puducherry

- Four **non-contiguous** former French territories: **Puducherry, Karaikal** (Tamil Nadu coast), **Mahe** (Kerala coast), **Yanam** (Andhra coast).
- De facto transfer **1 Nov 1954**; Treaty of Cession **1956**; de jure merger **16 Aug 1962**.
- **14th Amendment, 1962** inserted **Art. 239A** (Parliament may create legislature/CoM for certain UTs). Puducherry became a UT with legislature in **1963** (Government of Union Territories Act, 1963).
- Assembly: **30 elected** + up to **3 nominated** by the Centre. CoM with CM; LG.
- Can legislate on **State List and Concurrent List (समवर्ती सूची)** as provided — **no 239AA triplet** (public order / police / land reserved to Union in the Delhi sense).
- **70th Amendment:** Puducherry MLAs in the **Presidential electoral college**.
- Name: Pondicherry → **Puducherry (2006)**.

Delhi vs Puducherry vs J&K (UT-with-legislature)

Point	Delhi (NCT)	Puducherry	J&K (from 31 Oct 2019)
Article / law	**239AA** (69th Amd)	**239A** (14th Amd)	**J&K Reorganisation Act, 2019** (not 239AA)
Reserve subjects	Public order, police, **land** with Centre	No 239AA-style triplet	Police, public order, All-India Services etc. with LG / Centre (as in the Act)
Assembly size (order)	**70**	**30** elected (+ nominated)	**90** elected (24 PoK seats remain vacant as provided)
Presidential college	Yes (70th)	Yes (70th)	No Assembly vote in Art. 54 college in the Delhi/Puducherry way
Statehood	Never a full State after 1956	Never a State	**Was a State** till 2019; Centre has said restoration is intended — **still UT (Aug 2026)**

National Integration Council (NIC)

- **Extra-constitutional** (not in the Constitution, not created by a dedicated Act). **Not** a constitutional / statutory body.
- Set up **1961** by **Jawaharlal Nehru** (जवाहरलाल नेहरू) after the **1961** National Integration Conference (communal / caste / regional tensions). First meeting **1962**.
- **Chair: Prime Minister.** Typical members: Union ministers, **all CMs**, leaders of national/regional parties, nominated public persons, sometimes media/women/minority representatives.
- Mandate: advise on **communalism, casteism, regionalism, linguism, secessionism**; promote national unity. **Recommendatory only** — no binding / coercive power.
- Reconstituted several times (notably 1968, 1980, 2005, 2010, 2013). Meetings are **irregular** (not an annual statutory calendar).

> **Trap:** Do not confuse NIC with the **Inter-State Council (Art. 263)** or **NITI (नीति) Aayog** (नीति आयोग) — those are different Centre–State forums.

Citizenship (Part II)

- **Part II = Arts. 5–11.** The Constitution does **not** contain a complete citizenship code — only commencement rules + **Art. 11** power. Working law = **Citizenship Act, 1955** (amended 1986, 1992, 2003, 2005, 2015, **2019**).
- Some FRs (e.g. Art. **15, 16, 19, 29, 30**) are mainly for **citizens**; Arts. **14, 20, 21, 22, 25–28, 32** also protect **non-citizens** (as interpreted).

Single citizenship

- India = **one citizenship of the Union** for the whole country. **No** separate State citizenship (unlike **USA** — US citizen + State citizen).
- One civil-political status throughout India: an Indian can live, work and enjoy citizen-FRs in every State (subject to reasonable restrictions / special provisions like 371 / Inner Line where law so provides).
- **Does not** mean India allows **dual nationality** with a foreign country — that is banned (Art. 9 + termination under the 1955 Act). OCI is **not** a second citizenship.

Art.	Subject	Elaboration
5	Citizenship at commencement	Domiciled in India + (born in India **or** either parent born in India **or** ordinarily resident **5 years** before commencement).
6	Migrants from Pakistan	Rights of citizenship of certain persons who migrated from Pakistan. Cut-off **19 July 1948** (after that: registration).
7	Migrants to Pakistan	Persons who migrated to Pakistan after 1 Mar 1947 generally **not** citizens; returning permit-holders may register.
8	Indians residing abroad	Persons of Indian origin abroad may register as citizens with Indian diplomatic/consular post.
9	Voluntary foreign citizenship	If a person voluntarily acquires citizenship of a foreign State, Arts. 5–8 **do not apply**.
10	Continuance	Citizenship continues subject to any law made by Parliament.
11	Parliament's power	Parliament may make **any** provision on acquisition / termination / other matters of citizenship.

PYQ — UPPCS Prelims 2020, Q114

Which Articles of Indian Constitution are related to citizenship?

A. Article 3 to 10 B. Article 4 to 11 C. Article 5 to 11 D. Article 6 to 11

Show answer

Ans: C — Articles 5 to 11.

PYQ — UPPCS Prelims 2018, Q73

In which Part of the Constitution of India do we find the provisions relating to citizenship?

A. Part I B. Part II C. Part VII D. Part IX (भाग IX)

Show answer

Ans: B — Part II. Part I = Union and its Territory.

PYQ — UPPCS Prelims 2022, Q100

Consider the following subjects and arrange them in sequential order as mentioned in the Constitution.

I. The Union and its territory II. Fundamental duties (मौलिक कर्तव्य) III. Citizenship IV. Directive Principles (राज्य के नीति निदेशक तत्व) of State Policy

A. II, IV, I, III B. I, III, IV, II C. III, I, II, IV D. IV, II, III, I

Show answer

Ans: B — Part I (Union) → Part II (Citizenship) → Part IV (नीति निर्देशक) (DPSP (राज्य के नीति निदेशक तत्व)) → Part IVA (Duties).

Citizenship Act, 1955 — Acquisition

Five statutory modes (**ss. 3–7**). **Illegal migrant** (2003): entered without valid documents **or** overstayed — generally **barred** from birth / registration / naturalisation (CAA is a listed exception).

1. By birth (s. 3) — three clocks

Born in India	Rule
26 Jan 1950 – 1 Jul 1987	Citizen by birth **irrespective of parents** (except children of enemy aliens / foreign diplomats as provided)
1 Jul 1987 – 2 Dec 2004	Citizen if **either parent** was an Indian citizen at birth (**1986** amendment)
On/after 3 Dec 2004	Citizen only if **both parents** are Indian citizens, **or** one is Indian and the other is **not an illegal migrant** (**2003** amendment)

2. By descent (s. 4)

- Born **outside** India to an Indian-citizen parent.
- After **3 Dec 2004**, birth must ordinarily be **registered** at an Indian consulate within **1 year** (or later with permission). Descent through the father only was the old rule; **1992** amendment allowed the **mother** also.

3. By registration (s. 5)

Central Government may register (among others): - Persons of Indian origin **ordinarily resident in India for 7 years** - Persons of Indian origin ordinarily resident in any country or place outside undivided India - Persons married to Indian citizens and resident **7 years** - Minor children of Indian citizens - OCI cardholders resident **5 years** and resident in India **1 year** before applying (as provided)

4. By naturalisation (s. 6)

Foreigner (not illegal migrant) who qualifies under the **Third Schedule** of the 1955 Act: - **12 months** residence immediately before the application **plus11 years** in the **14 years** before that 12-month period (total **12-year** type test) - Good character; adequate knowledge of a language in the **Eighth Schedule** (आठवीं अनुसूची) - Intention to reside in India or serve under the Government - Oath of allegiance

Government may **relax** for a person who has rendered **distinguished service** to science, philosophy, art, literature, world peace, or human progress.

5. By incorporation of territory (s. 7)

When a new territory becomes part of India, the Central Government notifies which persons shall be citizens from which date (Goa 1961 (गोवा), Sikkim 1975, LBA enclaves 2015).

Citizenship Act, 1955 — Loss

Three modes. India does **not** allow **dual citizenship**.

Mode	Who / how	Fact
Renunciation (s. 8)	Voluntary declaration by an Indian citizen of **full age and capacity** who is also a citizen of another country	Minor children **also lose**; child may **resume** Indian citizenship within **1 year of turning 18**
Termination (s. 9)	**Automatic** when an Indian citizen **voluntarily acquires** citizenship of another country	Mirrors **Art. 9**. Question of *when* foreign citizenship was acquired is decided as provided in the Act
Deprivation (s. 10)	**Central Government order** — only against citizenship obtained by **registration or naturalisation**	Grounds: fraud/false representation; disloyalty; unlawfully traded/communicated with the enemy in war; ordinary residence **outside India for 7 years** without the prescribed annual declaration

> **Trap:** Birth-citizens are not "deprived" under s. 10 in the same way; they may still **renounce** or **terminate**.

NRI / PIO / OCI (basic)

Label	Who	Passport	Vote / office	Other fact
NRI	**Indian citizen** residing outside India	**Indian**	**Can vote** (in person in the Indian constituency; postal/proxy as law provides)	FEMA/tax resident rules are separate
PIO	Foreign citizen of Indian origin	Foreign	No	PIO **card scheme withdrawn**; merged into **OCI from 9 Jan 2015**

Label	Who	Passport	Vote / office	Other fact
OCI	Foreign citizen registered as Overseas Citizen of India (2005 scheme; s. 7A)	Foreign	**No** vote; **no** LS/RS/Assembly; **no** constitutional posts (President, VP, Judge, etc.); **no** public employment as of right	**Not dual citizenship.** Lifelong multi-entry visa; parity with NRIs in specified economic/education matters. Eligible to **register as citizen** after 5 years OCI + 1 year residence

Who is "of Indian origin" for OCI: typically a person who, or whose parents/grandparents, were citizens of India (or eligible) as notified — **not** a person who ever was a citizen of **Pakistan or Bangladesh** (OCI bar under s. 7A; CAA sits on a different track for listed migrants).

Citizenship Amendment Act (basic)

- **Citizenship (Amendment) Act, 2019** — amends the **1955** Act; rules notified **2024**.
- **Parliament passage:** Lok Sabha **9 Dec 2019**; Rajya Sabha (राज्यसभा) / Bill passed by Parliament **11 Dec 2019**; President's assent **12 Dec 2019**.
- Creates an exception to the **illegal-migrant bar** for a **listed religious group** from **three countries**.

Cue	Fact
Religions	**Hindu, Sikh, Buddhist, Jain, Parsi, Christian** (six)
Countries	**Pakistan, Afghanistan, Bangladesh** (three)
Entry cut-off	**On or before 31 December 2014**
What it does	They shall **not** be treated as illegal migrants; naturalisation residence relaxed (**11 years → 5 years** in the Third Schedule, as provided)
What it does **not**	Does **not** take away anyone's existing Indian citizenship. Does **not** apply to Indian Muslims / any Indian citizen. Does **not** cover Sri Lanka / Myanmar Rohingya / Nepal
Exclusions often asked	Does not apply to **Sixth Schedule** (6वीं अनुसूची) tribal areas of Assam, Meghalaya, Tripura, Mizoram, and to **Inner Line** notified areas (as in the Act)
Court	**SC, 17 Oct 2024** — CAA **upheld**

Other 1955 amendments (one-line):1986 — birth needs one Indian parent · **1992** — descent through mother · **2003** — illegal migrant defined; both-parents rule from 3 Dec 2004 · **2005** — OCI · **2015** — PIO merged into OCI.

Current Affairs (this topic)

Fact	Fact (as of Aug 2026)
Map	**28 States + 8 UTs** unchanged

Fact	Fact (as of Aug 2026)
J&K	Still a **UT with legislature** (elections 2024). SC (Dec 2023) upheld 370 abrogation; statehood “at the earliest” — **not restored**
Ladakh	UT **without** legislature
Delhi services	SC May 2023 (elected govt) vs **GNCTD 2023** (NCCSA + LG final say, now in 1991 Act)
CAA	In force; SC 2024 upheld